Restricted

FAX-3315695 / 3311598

NO.CAS-7(9)-2005.Div.I
BUREAU OF CIVIL AVIATION SECURITY
(MINISTRY OF CIVIL AVIATION)
GOVERNMENT OF INDIA
A WING, JANPATH BHAWAN,
JANPATH, NEW DELHI -110001
Date : 24.10.2005

C I R C U L A R NO. 42/ 2005

In continuation of this Bureau Circular issued vide letter No. CAS-6(3)-DIV-II dated 3.7.1999, the following instructions shall be strictly adhered to by all concerned for carriage of a prisoner / person under judicial custody / administrative control (herein after mentioned as prisoners) by air :-

(i) No aircraft operator shall allow a prisoner and escorting officers as passengers unless prior permission is obtained from the BCAS by the concerned policing authority who is responsible for transportation of such prisoner with escorts by air.

(ii) The policing authority requiring transportation of a prisoner by air shall send their request in writing to the Commissioner / Regional Dy Commissioner of Security (CA), BCAS at least 7 (seven) days in advance incorporating the details in their application as mentioned in **annexure 'A'** attached.

(iii) The policing authority responsible for carriage of a prisoner by air shall indicate classification of such prisoner as **dangerous or otherwise** in their application addressed to the Commissioner or Regional Dy Commissioner of Security (CA), BCAS.

(iv) No more than one prisoner, classified as **dangerous,** shall be allowed on any one flight.

(v) Minimum 02 (two) escorts of the Policing authority shall be required for one prisoner who is classified as dangerous by the policing authority.

Contd..2/-

(vi) Policing authority officers or other authorized persons should notify a responsible representative of the operator well before the date it is proposed to transport a prisoner, or as soon as practicable in an emergency, the identity of the person being escorted, the flight on which transportation has been arranged, and whether or not the escorted person is considered dangerous.

(vii) Escorting officers should be apprised, by a responsible representative of the aircraft operator, of the potential danger to the safe operation of the aircraft should they take any action during an act of unlawful interference without direction from the pilot-in-command.

(viii) Escorting officers shall ensure that a prisoner does not carry contraband, weapons, matches or other potentially dangerous items.

(ix) Escorts shall be equipped with **adequate restraining devices** to be used in the event they determine that restraint is necessary. Under **normal circumstances** a prisoner should not be shackled to any part of the aircraft, including seats, tables etc.

(x) Escorts shall not carry arms, mace, teargas or similar incapacitating gas generating devices or any dangerous goods / prohibited items specified by the BCAS on board the aircraft. Weapon and ammunition if any may be allowed in registered baggage as per instructions in force.

(xi) Escorts shall adequately identify themselves to security personnel policing authority officers on duty at the security check points and flight attendants. Their presence on board and seat assignment shall be transmitted by the flight attendants to the pilot-in-command who should acknowledge receipt of this information.

(xii) Any other security personnel and passengers authorized to carry firearms on board the aircraft should be made aware of the transportation of a prisoner and escorts and their location.

(xiii) A prisoner along with escorts should be boarded before all other passengers and disembarked after all other passengers have left the Aircraft.

Contd..3/-

(xiv) They should be seated as far as to the rear of the passenger cabin as is possible but not in a lounge area or next to / directly across from an exit.

(xv) They should only be seated in a row for two or more seats and at least one escort should sit between the escorted person and any aisle.

(xvi) They should be accompanied at all times and kept under surveillance, including visits to the lavatory.

(xvii) No intoxicating beverage shall be served to escorts or prisoner while on board the aircraft.

(xviii) Prisoner may be served food at the discretion of escorts but should not be provided with metal utensils or a knife.

(xix) Aircraft operator should not accept a prisoner and escort(s) as passengers unless concurrence has been obtained in advance from the BCAS (GOI) and other operators that may be involved en route and at the intended final destination. In such cases sufficient advance notification must be given to operator so that prior agreements can be obtained.

(xx) Format of permit which will be issued by the BCAS for carriage of prisoner and escorts by air is enclosed as Annexure 'B'.

(Manoj Malaviya)
Addl. Commissioner of Security (CA)

Distribution: As per standard list.

Annexure 'A'

(Application for permission for carriage of a prisoner under judicial/ administrative control by air on the letter head of the concerned Policing Authority)

To

<table>
<tr><td colspan="2">The Commissioner of Security (CA),Bureau of Civil Aviation Security, Government of India, Janpath Bhawan A-Wing, New Delhi 110001
Fax No. 011-23315695
Or</td></tr>
<tr><td>(For flights originating from any airport in Delhi Region)
The Regional Dy Commissioner of Security (CA)
Bureau of Civil Aviation Security,
Government of India,
IGI Airport, Mahipalpur, New Delhi
Fax No. 01125652486</td><td>(For flights originating from any airport in Mumbai Region)
The Regional Dy Commissioner of Security (CA)
Bureau of Civil Aviation Security,
Government of India,
Mumbai Airport , Mumbai
Fax No. 022-26164610</td></tr>
<tr><td>(For flights originating from any airport in Chennai Region)
The Regional Dy Commissioner of Security (CA)
Bureau of Civil Aviation Security,
Government of India,
Chennai Airport , Chennai
Fax No. 044-22561107</td><td>(For flights originating from any airport in Kolkata Region)
The Regional Dy Commissioner of security (CA)
Bureau of Civil Aviation Security,
Government of India,
Kolkata Airport , Kolkata
Fax No. 033-25112030</td></tr>
</table>

Subject:- Regarding permission for carriage of a prisoner along with escorts by air for producing in the court (name of the Court) on (date).

Sir,

It is requisted that permission may please be granted for carriage of a prisoner by air who is to be produced in the Court of _____/ or before _____ (Designation of the authority) on

_____ in connection with a case stated as under. A copy of Court/ Administrative order is enclosed.

1	Name of a prisoner to be transported by air	
2	Classification of the prisoner	
3	Directions of court alongwith a copy of court order	
4	Reasons and brief history of the crime and sections of law for transporting a prisoner by air	
5	Name and designation of the leader of escort party	
6	Composition of the escort party with name & designation	
7	Departing airport	
8	Disembarking airport	
9	Flight number, date and time	
10	Fax/ Contact Number of Policing Authority.	

Yours faithfully

(xxxxxxxxxxxx)
Designation
Date
Seal

Annexure ' B'

FAX-23315695 / 23311598

Secret/ Immediate

NO.CAS-7(9)/2005.Div.I

BUREAU OF CIVIL AVIATION SECURITY

(MINISTRY OF CIVIL AVIATION)

GOVERNMENT OF INDIA

A WING , JANPATH BHAWAN
JANPATH, NEW DELHI -110001

Permit No. CAS-7(9)/2005.Div.I Dated:

In exercise of powers under Rule 24 B of Aircraft Rules 1937 delegated to him by Government of India, Ministry of Civil Aviation & Tourism notification No. S.O. 727 (E) dated 4.10.94, Commissioner of Security(CA), Additional Commissioner of Security(CA), Deputy Commissioner of Security (CA) of Bureau of Civil Aviation Security authorizes, the …….. (Name of agency/ Ministry) or cause to be carried …… (Name of person/ persons) under administrative control by air from ……. (Name of place) to ……. (Name of place).

The privilege of this permit shall be exercised subject to observance of following conditions:

a) A prisoner should not be transported on board an aircraft unless escorted by one or more policing authority officers.
b) Policing authority officers or other authorized persons should notify a responsible representative of the operator well before the date it is proposed to transport a prisoner, or as soon as practicable in an emergency, of the identity of the person being escorted, the flight on which transportation has been arranged, and whether or not the escorted person is considered dangerous.
c) An operator should not accept a prisoner and escort(s) as passengers unless concurrence has been obtained in advance from the BCAS and other operators that may be involved en route and at the intended final destination. In such cases sufficient advance notification must be given to the operator so that prior agreements can be obtained.
d) Escorting officers should be apprised, by a responsible representative of the operator, of the potential danger to the safe operation of the aircraft should they take any action during an act of unlawful interference without direction from the pilot-in –command.

e) Escorting officers should ensure that a prisoner does not carry contraband, weapons, matches or other potentially dangerous items.

f) Escorts should be equipped with adequate restraining devices to be used in the event they determine that restraint is necessary . Under normal circumstances a prisoner should not be shackled to any part of the aircraft, including seats, tables, etc.

Contd..2/-

g) Escorts should not carry mace, tear-gas or similar incapacitating gas-generating devices on board an aircraft.

h) Escorts shall adequately identify themselves to security personnel, policing authority officers on duty at the security check points, and flight attendants, requesting that their presence on board and seat assignment be transmitted to the pilot-in –command, who should acknowledge receipt of this information.

i) Any other security personnel and passengers authorized to carry firearms on board the aircraft should be made aware of the transportation of prisoners and escorts and their location.

j) Escorted persons should be boarded before all other passengers and disembarked after all other passengers have left the aircraft.

k) They should be seated as far to the rear of the passenger cabin as is possible but not in a lounge area or next to/ directly across from an exit.

l) They should only be seated in a row of two or more seats and at least one escort should sit between the escorted person and any aisle.

m) They should be accompanied at all times and kept under surveillance, including visits to the lavatory.

n) No intoxicating beverage should be served to escorts or prisoners while on board the aircraft.

o) Prisoners may be served food at the discretion of escorts but should not provided with metal utensils or a knife.

p) An operator should refuse to accept a prisoner if, in the judgment of a responsible representative of the operator, such acceptance may jeopardize the safety of the other passengers.

q) No more than one prisoner, classified as dangerous, shall be allowed on any one flight.

r) Minimum 02 (two) escorts of the Policing authority shall be required for one prisoner who is classified as dangerous by the policing authority.

(Name/ signature)
Designation

To
……..
(Name of the person/ agency to whom authority is issued)

Copy to:
1. The ……
   (Name of Airlines)
   (Name of Airport)

2. In-charge Airport Security Unit,
   ……..
   (Name of place)